

Dinesh Kumar Gupta v. Purvanchal Vidyut Vitran Nigam Ltd. & Others

High Court of Judicature at Allahabad · Division Bench · 1 December 2025 (order-sheet, 23.12.2011 to 1.12.2025) · WRIT - C No. - 76008 of 2011 · **Petition disposed: registered meter-holder liable despite tenant (Cl. 2.2(oo) rejected); simultaneous provisional-cum-final assessment treated as provisional, petitioner allowed to object in 4 weeks, citation in abeyance**

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HEADNOTE

Order-sheet culminating in the reopening of an assessment. The petitioner, the registered electricity meter-holder, challenged a recovery notice dated 25.11.2011 and a consequential citation for Rs.2,16,287, contending (i) that he had let the premises to a tenant (respondent no.5), the authorized person in occupation running a coaching centre, so that under the 'Occupier' definition in Clause 2.2(oo) of the U.P. Electricity Supply Code, 2005 the tenant alone was liable, and (ii) that the respondents had made the provisional and final assessment simultaneously without affording an opportunity to object to the provisional assessment, de-hors the prescribed procedure. Recovery had been stayed on 23.12.2011. Disposing of the writ on 1.12.2025, the Division Bench (Ajit Kumar and Vivek Saran, JJ.) rejected the occupier plea, holding that since the electricity meter stood in the name of the petitioner, the petitioner was liable to meet the charges; but, on the respondents' own admission in the counter affidavit that the provisional and final assessments were the same, held that after making a provisional assessment the authorities were bound to issue notice to the meter-holder to file objection. The Court therefore treated the impugned final assessment as a provisional assessment, permitted the petitioner to file objections within four weeks to be decided by respondent no.2 within a further month, and directed the recovery citation to remain in abeyance for two months or till that final decision.

FACTUAL SUMMARY

Dinesh Kumar Gupta, the registered electricity consumer (meter-holder) for premises at which a coaching centre was run, was served a recovery notice dated 25 November 2011 and a consequential recovery citation for Rs.2,16,287 by the Purvanchal Vidyut Vitran Nigam Ltd. He filed Writ-C No.76008 of 2011 before the Allahabad High Court under Article 226, praying to quash the notice and citation. His case was that he had rented the premises to respondent no.5 (Awdesh Kumar Singh), who - as the checking report itself recorded - was in occupation and running a coaching centre, and that under the definition of 'Occupier' in Clause 2.2(oo) of the U.P. Electricity Supply Code, 2005 (the owner or authorized person in occupation) the authorized person in occupation, respondent no.5, alone was liable for the dues. He further contended that the respondents had made the provisional and final assessment at the same time without giving him an opportunity to file objection to the provisional assessment, contrary to the prescribed procedure. On 23 December 2011 a Division Bench (Vineet Saran and Ashok Pal Singh, JJ.) found a prima facie case and stayed recovery under the citation. After numerous adjournments over more than a decade, the writ was finally heard and disposed of on 1 December 2025 by a Division Bench of Ajit Kumar and Vivek Saran, JJ., the respondents having admitted in their counter affidavit that the provisional and final assessments were the same.

REUSABLE CONSTRUCTIONS

1. The registered consumer in whose name the electricity meter stands is liable to meet the charges; the definition of 'Occupier' in Clause 2.2(oo) of the U.P. Electricity Supply Code, 2005 does not, by the mere induction of a tenant in occupation, shift that liability to the occupier. **order of 1.12.2025**
2. Where the authority admittedly makes the provisional and final assessment at the same time, it denies the meter-holder the opportunity to object to the provisional assessment; such a 'final' assessment is treated as merely provisional and the meter-holder is permitted to file objections before a fresh final decision. **order of 1.12.2025**
3. On so reopening the assessment, the writ court may keep the recovery citation in abeyance for a fixed period, or until the authority's final decision, which the citation is to abide. **order of 1.12.2025**

HOLDING-UNITS

HOLDING-UNIT · UP-2005::2.2(oo)

RATIO

Registered meter-holder remains liable for the charges notwithstanding a tenant in occupation; the 'Occupier' definition does not shift

QUESTION

Where the registered consumer (meter-holder) has inducted a tenant who is the authorized person in occupation, is the meter-holder nonetheless liable for the electricity dues, or does the definition of 'Occupier' in Clause 2.2(oo) fasten liability solely on the person in occupation?

HOLDING

The meter-holder remains liable. The petitioner relied on Clause 2.2(oo), which defines 'Occupier' as the owner or authorized person in occupation of the premises where electricity is used, to contend that his tenant (respondent no.5, running a coaching centre) alone was liable. The Court rejected this: since the electricity meter stood in the name of the petitioner, the petitioner is liable to meet the charges. The induction of a tenant, and the recording in the checking report that the tenant was in occupation, did not by itself transfer the statutory liability away from the registered meter-holder.

order of 1.12.2025

EVIDENCE *“Learned counsel for the petitioner places reliance on the definition of “Occupier” given in Clause 2.2 (oo) of the U.P. Electricity Supply Code, 2005 whereby it may be the owner or authorized person in occupation of the premises where electricity is used.”* order of 23.12.2011

EVIDENCE *“since the electricity meter stands in the name of the petitioner, petitioner is liable to meet the charges.”* order of 1.12.2025

FLAG Order-sheet: 11 pages, multiple dated orders from 23.12.2011 to the disposal of 1.12.2025, no printed page numbers (the final order carries a single '2' page marker); pins are order dates. The interim stay of recovery is of 23.12.2011 (Vineet Saran and Ashok Pal Singh, JJ.); the operative disposal is the 1.12.2025 order (Ajit Kumar and Vivek Saran, JJ.).

HOLDING-UNIT · EA2003::126(3)**RATIO**

Provisional and final assessment cannot be made simultaneously; a 'final' assessment made without an objection opportunity is treated as provisional

QUESTION

Where the authority admittedly makes the provisional and final assessment at the same time, without giving the meter-holder an opportunity to file objection to the provisional assessment, is the final assessment sustainable?

HOLDING

No. The respondents admitted in their counter affidavit that the provisional and final assessments were the same. The Court held that after making a provisional assessment the authorities are liable to issue notice to the petitioner/meter-holder to file objection, if any; a simultaneous provisional-cum-final assessment denies that opportunity. It therefore treated the impugned final order of assessment as a provisional assessment and permitted the petitioner to file objections within four weeks, to be dealt with by respondent no.2 by a final decision within a further month, the recovery citation dated 25.11.2011 to remain in abeyance for two months or till that final decision, which it is to abide. order of 1.12.2025

EVIDENCE *“the respondents have proceeded to make provisional/ final assessment at the same time without giving opportunity to the petitioner to file objection to the provisional assessment, if any, and hence the procedure adopted by the respondents is dehors the procedure prescribed under the relevant Act and Rules.”* order of 1.12.2025

EVIDENCE *“since the respondents have themselves admitted in the counter affidavit that the provisional and final assessments are the same, in our considered view after making provisional assessment, the authorities are liable to issue notice to the petitioner/ electricity meter holder to file objection, if any.”* order of 1.12.2025

EVIDENCE *“we consider this final order of assessment as provisional assessment and permit the petitioner to file objections to the same within a period of four weeks from today”* order of 1.12.2025

EVIDENCE *“the impugned citation of recovery dated 25.11.2011 shall remain in abeyance and abide by the final decision to be taken by the authority concerned.”* order of 1.12.2025

PRINCIPLE TAGS

meter-holder-liable-notwithstanding-tenant-in-occupation

The registered consumer in whose name the meter stands is liable for the charges; Clause 2.2(oo)'s 'Occupier' definition does not shift liability to a tenant in occupation. Cf. the definitional Clause 2.2 applied in SCJ-072. order of 1.12.2025

provisional-and-final-assessment-cannot-be-simultaneous

After a provisional assessment the authority must give the meter-holder notice to object before a final assessment; a simultaneous provisional-cum-final assessment is treated as merely provisional and reopened. Same 126(3) objection-stage line as SCJ-032, SCJ-898. [order of 1.12.2025](#)

recovery-citation-kept-in-abeyance-pending-fresh-objection

On reopening the assessment for objection, the recovery citation was kept in abeyance for two months or till the authority's final decision, which the citation is to abide. [order of 1.12.2025](#)

NOT DECIDED — NEGATIVE AUTHORITY**NOT DECIDED — MERITS AND QUANTUM OF THE ASSESSMENT (THE RS.2,16,287 DEMAND)**

The Court did not decide the merits or quantum; it reopened the assessment by treating the final order as provisional and remitting the objections to respondent no.2 for a fresh final decision within one month. [order of 1.12.2025](#)

NOT DECIDED — INTER-SE LIABILITY AS BETWEEN THE PETITIONER-METER-HOLDER AND THE TENANT RESPONDENT NO.5

The Court held the registered meter-holder liable to the licensee for the charges but did not adjudicate any right of the meter-holder to recover from, or apportion liability with, the tenant in occupation. [order of 1.12.2025](#)

RELATED CASES — SEE ALSO

SCJ-032 — Section 126(3) requires an opportunity to object to the provisional assessment before a final assessment; supports treating a simultaneous provisional-cum-final assessment as merely provisional.

SCJ-898 — A final Section 126(3) assessment is mandatory before recovery; the objection stage cannot be collapsed into the provisional assessment.

SCJ-1270 — Companion Allahabad order-sheet on the provisional-assessment/objection scheme; there the unobjected provisional assessment made recovery valid and the assessee was relegated to the Section 127 appeal.

SCJ-072 — Applies the definitional Clause 2.2 of the U.P. Electricity Supply Code, 2005; here Clause 2.2(oo)'s 'Occupier' definition was invoked but did not displace the meter-holder's liability.